



Wisconsin Elections Commission

201 West Washington Avenue | Second Floor | P.O. Box 7984 | Madison, WI 53707-7984
(608) 266-8005 | elections@wi.gov | elections.wi.gov

September 11, 2026

Maricha Harris
Deputy Director
City of Milwaukee Election Commission
200 E. Wells Street, Room 501
Milwaukee, WI 53202

Paulina Gutiérrez
Executive Director
City of Milwaukee Election Commission
200 E. Wells Street, Room 501
Milwaukee, WI 53202

Sent via email: voterinfo@milwaukee.gov, pgutie@milwaukee.gov, maharr@milwaukee.gov

Re: Wis. Stat. § 5.06 Complaint Filed with the Wisconsin Elections Commission:
Justin Gavery v. Maricha Harris and Paulina Gutiérrez (EL 26-58)

Dear Deputy Director Harris and Executive Director Gutiérrez,

Attached to the email transmitting this notice, please find a formal Wisconsin Statute § 5.06 complaint filed with the Wisconsin Elections Commission (Commission) by Justin Gavery.

The Complainant alleges that both Respondents failed to make a full, accurate, and timely return of the votes in violation of Wis. Stat. §§ 7.52(8) (canvassing of absentee ballots), 7.51(4)(c) (announcing and reporting local board of canvassers), and 5.86(1) (proceedings at central counting locations) and also denied observer access at the central counting location in violation of Wis. Stat. §§ 7.52(1)(a) (canvassing of absentee ballots) and 7.41(2) (public's right to access) and Wis. Admin. Code §§ EL 4.03(1)(a) (procedures for election officials), EL 4.05(3)(a), and EL 4.05(6)(a) (location-specific requirements for Board of Absentee Ballot Canvassers and Central Count). Regarding return of the votes, the Complainant alleges that Executive Director Gutiérrez violated Wis. Stat. §§ 7.15(1)(e) (supervising registration and elections), 5.86(1) (proceedings at central counting locations), and 7.15(2m) (operation of alternate absentee ballot site); and, regarding observer access, he alleges that she violated Wis. Admin. Code § EL 4.03(5) (election observer procedures for election officials).

The Complainant also alleges that Executive Director Gutiérrez failed to give notice of the meeting of the Board of Absentee Ballot Canvassers in an abuse of discretion and violation of Wis. Stat. §§ 7.52(1)(a) (canvassing of absentee ballots) and 7.15(1)(d) (supervising registration and elections) and also failed to publish timely notice of pre-election tabulator testing in an abuse of discretion and violation of Wis. Stat. §§ 5.84(1) (testing of equipment; requirements for programs and ballots) and 7.15(1)(d) (supervising registration and elections).

Individuals who believe the actions of an election official were contrary to an election law or were an abuse of discretion in applying an election law may file a complaint with the Commission. As the Respondents, you may now provide a sworn written response to the complaint within 13 business days of the date appearing on this letter, which is **September 30, 2026**. Your response should address the allegations raised in the complaint.

After you file your response, the Complainant may file a reply within 13 business days of the date that the Commission transmits your response to the Complainant. Once all allowable filings have been received,

Wisconsin Elections Commissioners

Don M. Millis, chair | Marge Bostelmann | Ann S. Jacobs | Carrie Riepl | Robert Spindell | Mark L. Thomsen

Administrator
Meagan Wolfe

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Commission staff will review the information and draft a decision letter for the Commission's consideration and decision at an upcoming meeting.

You may file your response via email addressed to brandon.hunzicker@wisconsin.gov and elections@wi.gov so long as it is clear that the original document has been sworn before an individual that can administer oaths, like a notary public, or that it contains an unsworn declaration. You may also file the response via regular mail to the address listed in the header above. If you have any additional questions, please feel free to contact me at 608-267-0714.

Sincerely,

A handwritten signature in cursive script that reads "Brandon Hunzicker".

Brandon Hunzicker
Staff Attorney
Wisconsin Elections Commission

cc: Meagan Wolfe, Commission Administrator